GRAVEL ROAD DISTRIBUTION GROUP (PTY) LTD
and
ROADHOUSE CINEMA (PTY) LTD
versus
RABOBANK INVESTMENTS (PRIVATE) LIMITED
and
ROBYN HUTCHINGS
and
CHIPO NDUDZO

HIGH COURT OF ZIMBABWE
MUSITHU J
HARARE: 24 February 2026 & 16 March 2026

Urgent Chamber Application-Interdict

A.S. Ndlovu with A. Moyo, for the applicants
T. Mpofu, for the respondents

MUSITHU J:

1. The applicant approached this court on an urgent basis seeking an interdict against the respondents. The relief sought is set forth in the draft provisional order as follows:

"**TERMS OF FINAL ORDER SOUGHT**
That you show cause to this Honourable Court why a final order should not be made in the following terms –

1. That it be and is hereby confirmed that the franchise agreement/franchise relationship between
   the parties has been lawfully cancelled, and that the Respondents have no right to operate, represent, or trade under the Road House brand, intellectual property, or confidential materials.
2. That the Respondents shall, within ten (10) days of service of this order, fully de-brand the premises by removing all physical and digital elements associating the premises with the Applicant's Road House Cinema brand, including all "Road House" signage and branding (including at entryways and foyers) and all online/social media/ticketing pages and channels using the "Road House" name or marks, to the reasonable satisfaction of the Applicant.
3. That the Respondents shall, within ten (10) days of service of this order remove all decorative or architectural features including red carpet, seat coverings, wallpaper, acoustic fibre, lighting fixtures, lux lounge identifiers , floor plan and design to the extent that they reproduce the Applicant's protectable trade dress as depicted in the Roadhouse Build out manual and cause or are likely to cause confusion or passing off.

4. That the Respondents be and are hereby interdicted and restrained from engaging with, communicating with, or presenting themselves to film distributors, studios, or suppliers as being affiliated with, authorised by, or continuing to represent the Road House Cinema brand or its franchise network.
5. That the Respondents be and are hereby directed within 10 working days hours of service of this order to provide the Applicant with audited turnover figures and supporting point-of-sale reports for the period 3 December 2025 up to date of service of this order.
6. That the Sheriff, with the assistance of the Zimbabwe Republic Police where necessary, be and is hereby authorised and directed to give effect to the terms of this order by attending the Respondents' business premises at Sam levy, Borrowdale to ensure 248/249 249/411 compliance with the order, inspecting for any continued use of the Road House brand, trade dress or signage as depicted in the Roadhouse Build out manual, recording the state of compliance, and taking any steps lawfully necessary to enforce removal of infringing materials and service of this order
7. That the Respondents shall pay the costs of suit on the attorney-and-client scale.

INTERIM RELIEF GRANTED

Pending determination of this matter, the Applicant is granted the following relief –

1. That the Respondents be and are hereby interdicted and restrained from operating, trading, advertising, or holding out to the public including on any website, ticketing platform, or social media that they are authorized to operate a 'Road House Cinema' franchise at Sam Levy Village, Harare, Zimbabwe, or at any other premises, without the Applicant's written authority.
2. That the Respondents be and are hereby directed to remove all external signage, marquee branding, poster displays, and any visible brand identifiers bearing the Road House name, logos, Road House design layout and lux lounge identifiers, and any other trade dress from the premises as provided in the Roadhouse Build out manual within 48 (forty-eight) hours of service of this order.
3. That the Respondents be and are hereby directed within 48 hours of service of this order to provide the Applicant with unaudited turnover figures and supporting point-of-sale reports for the period 3 December 2025 up to date of service of this order.
4. That the Sheriff, with the assistance of the Zimbabwe Republic Police where necessary, be and is hereby authorised and directed to give effect to the terms of this order by attending the Respondents' business premises at Sam levy, Borrowdale to ensure compliance with the order, inspecting for any continued use of the Road House brand, trade dress or signage as depicted in the Roadhouse Build out manual, recording the state of compliance, and taking any steps lawfully necessary to enforce removal of infringing materials and service of this order
5. Costs of suit on the attorney and client scale to be borne by the Respondents.

SERVICE OF PROVISIONAL ORDER

The Applicants legal practitioners are granted leave to serve the provisional order on the Respondents or alternatively on the Respondent's legal Practitioners physically or via their chosen email addresses."

Background to the application and the applicant's case

2. The first applicant is a South African company. It is the franchisor under a franchise arrangement with the first respondent. It claimed to have been authorised by its group to negotiate and conclude that arrangement with the first respondent. The first applicant is also the sole shareholder of the second applicant. The second applicant is also a South African private company which controls the goodwill and common law rights in what is known as the "Road House Cinema" brand. It authorised the first applicant to conclude the franchise arrangement with the first respondent.

3. The first respondent is a private company incorporated in Zimbabwe. It is alleged to have held itself out as the authorised franchisee and operator of the Road House Cinema outlet, which is located at Sam Levy's Village, Borrowdale, Harare. The second respondent was cited as the director and principal representative of the first respondent. She is alleged to have represented the first respondent in its engagements with the applicants. There were certain acts and omissions that were attributed to her which gave rise to the proceedings. That explained her joinder as a respondent under these proceedings. The third respondent was also cited in her capacity as a director of the first respondent.

4. The applicant's founding affidavit was deposed to by Benjamin Thomas Cowley who claimed that on 17 June 2025, he addressed a written offer to the second and third respondents in connection with the establishment and operation of the Road House Cinema franchise at Sam Levy Village. The offer set out the material commercial and operational terms of the proposed arrangement which included the franchise structure, branding framework and financial arrangements.

5. Around 20 June 2025, the first respondent duly represented by the second respondent communicated its acceptance of the offer, confirming that the respondents had agreed to proceed with the franchise on the proposed terms. The said acceptance as read with the offer led to the conclusion of an oral contract and partly written franchise agreement. Alternatively, the communication yielded a tacit agreement between the parties.

6. The agreement was operationalised once it was concluded. The respondents paid the required once off fee, and they started trading under the Road House Cinema brand. The applicants provided access to branding materials, detailed design layouts, operational guidance, and proprietary documentation necessary for the establishment and operation of the cinema. Put differently, the respondents were given a whole blue-print for designing a "Road House cinema".

7. The cinema was launched in early November 2025. The deponent to the applicants' founding affidavit claimed that around 20 November 2025, he sent a draft written franchise agreement to the respondents, with a view to formally recording the terms of the already existing franchise relationship and for other regulatory and administrative requirements. The deponent further claimed that the draft agreement was transmitted on the basis that the cinema was already trading and that all work undertaken to that date had been done in good faith.

8. The draft agreement was never signed by the respondents, and no fully signed franchise agreement came into existence. The franchise agreement continued to be governed by the oral agreement concluded around 25 June 2025, as supplemented by the parties' subsequent conduct and exchanged correspondence.

9. The applicants averred that since the conclusion of the franchise agreement, the first respondent, duly represented by the second respondent repeatedly failed to cooperate with the applicants' demands on matters concerning the operation of the Road House Cinema franchise. The alleged transgressions were summarised as follows. On 24 October 2025, the deponent emailed to the respondents a Marketing Proposal for their comments. No response was received despite follow ups that were made on 10 and 17 November 2025.

10. On 13 November 2025, the deponent claimed that he requested input and approval from the second respondent for the official franchise website, necessary for showtimes and promotions. No feedback was given and the site never went live despite reminders that were given until 2 December 2025. According to the deponent, this obstructed an agreed marketing and communication channel and was inconsistent with the respondents' obligation to support authorised branding and marketing initiatives.

11. On 20 November 2025, the deponent requested an urgent meeting with the second and third respondents to address issues concerning marketing activities. The respondents refused to meet or cooperate with the applicants in managing the franchise.

12. The deponent further claimed that on 4 December 2025, he learnt that the second respondent had unilaterally engaged film distributors and suppliers in South Africa and instructed them to deal directly with her. This was done without the applicants' knowledge or consent. This was contrary to the franchise arrangement which required that distributor relationships be managed through the franchisor. This conflicted with the

respondents' contractual obligation to follow the applicants' systems and not interfere with the arrangements without the applicants' consent.

13. At the same time, the deponent also became aware that the second respondent had commissioned social media platforms under the name **"Road House Cinema Zimbabwe"**, using the Road House Cinema name without the applicants' consent. This was an unauthorised use of the applicants' intellectual property and breached the requirement that all branding and advertising material must be approved by the franchisor.

14. On 5 December 2025, the deponent wrote to the third respondent requesting information on the marketing plan, uniforms and decor and raising concern about an unauthorised third-party agency downloading assets from the applicants' share drives. The respondents did not respond.

15. On 12 January 2026, the deponent requested unaudited turnover figures for the period 3-31 December 2025. A follow up was made on 18 January 2026, but the figures were not furnished. The applicants considered this to be a direct breach of the franchisee's reporting and disclosure obligations and exposed the applicants to financial prejudice as it could not claim its royalties without the audits. The respondents were therefore benefitting from the applicants' brand for free.

16. The deponent wrote to the third respondent on 21 January 2026, advising that the franchise relationship had irretrievably broken down because of the second respondent's unauthorised and bad faith conduct, which was inconsistent with the franchise agreement.

17. As regards the urgency of the matter, the deponent averred that the need to act arose when the respondents failed to comply with the demand in the letter of 28 January 2026, in which they were required to cease all use of the Road House Cinema brand and regularise outstanding reporting and payment obligations by 08:00 hours on 30 January 2026, failing which legal action would be pursued.

18. The applicants engaged local counsel who on 12 February 2026 wrote to the respondents accepting the repudiation and cancelling the contract. The respondents remained obstinate. Meanwhile, the respondents continued to operate the cinema under the Road House Cinema brand without furnishing the requested turnover figures and without accounting for the payments due to the applicants. The respondents continued to trade on

the applicants' brand and systems without authority or payment. The harm was therefore ongoing.

19. It was averred that the urgency crystallised only once the respondents conduct escalated into a clear repudiation, refusal to account, refusal to pay, disregard of a formal cessation demand and continued unlawful trading thereafter. If the court failed to intervene at this stage, then the applicants would suffer prejudice in that by the time the matter was heard in the ordinary course, the damage to the applicants' brand, goodwill, public perception and commercial relationships would have become irreversible, rendering any later relief academic.

The Respondents' Case

20. Robyn Mary Hutchings, the second respondent herein, deposed to the main opposing affidavit in her own capacity as well as a director of the first respondent. The third respondent deposed to her own opposing affidavit in which she essentially associated herself with the averments made by the second respondent in her own opposing affidavit. The second respondent's opposing affidavit raised preliminary points which were further motivated at the hearing of the matter. One of the preliminary points that was raised and which must be disposed of first pertains to the urgency of the matter.

Urgency

21. The second respondent averred that the matter was not urgent. The applicant was relying on correspondence from October and November 2025 in seeking urgent relief. It was submitted that at any rate, the matter had since been overtaken by events. If the applicant and their legal practitioners had done due diligence, they would have noted that all the signage pertaining to Road House Cinema was removed on 26 January 2026. No evidence was attached to the application to show that the respondents were still using the name Road House Cinema.

22. In further motivating the point, Mr *Mpofu* for the respondents submitted that the matter was also not urgent because the relief sought by the applicants could still be sought in an ordinary claim for damages. Counsel further submitted that while the applicants alluded to reputational damage as one of the factors justifying urgency, no reputational claim had been made. Such a claim could still be established in an ordinary claim for damages.

23. In response, the applicants denied that the need to act arose in October or November 2025. At that stage, there was no actionable refusal or breach to warrant an approach to the court on an urgent basis. The only issue then was the respondents' failure to respond

to emails. Urgency arose when royalties were demanded and not paid, and when the applicants issued a demand to cease operations.

24. The applicants also dismissed as being misplaced, the respondents' contention that urgency was overtaken by events because of the alleged rebranding of the facility to "Magic Screen". The alleged rebranding implicitly confirmed that the respondents were trading under the applicants' brand and knew that they could not continue doing so without paying for it. A belated name change could not cure prior unlawful use or the ongoing use of the applicants' trade dress and distinctive get up under an alleged new name.

25. The alleged rebranding as at 29 January 2026 was also dismissed as misleading on the basis that the inspections conducted on 31 January 2026, 6 and 10 February 2026 confirmed that key elements of the Road House Cinema trade dress, which included the Lux Lounge identity remained in place. It was also alleged that as late as 3 February 2026, the respondents were still promoting the Lux Lounge experience. The ongoing conduct therefore continued to prejudice the applicants' goodwill.

26. In her oral submissions, Ms *Ndhlovu* for the applicants argued that the matter remained urgent because the nature of the harm was continuing. The respondents continued to use the first applicant's name and interior designs. The relief sought on an interim basis was not just limited to financials but also included the removal of some pictures that belonged to the applicants.

The Analysis

27. The parties first appeared before the court on 20 February 2026. The respondents' notice of opposition had been filed on 18 February 2026. With the concurrence of the parties, I directed that the parties carry out a ground verification of the premises in view of the respondents' averments that they had removed all signage pertaining to Road House Cinema on 29 January 2026. Were that the case, then the principal dispute would have been overtaken by events, and the matter could be easily resolved amicably. I postponed the matter to 24 February 2026 with further directions that the parties could file heads of argument if they failed to reach an amicable settlement.

28. On the eve of the hearing on 24 February 2026, the applicants' legal practitioners filed minutes of the parties' engagement setting out the areas of agreement and disagreement. The minutes only bore the signature of the applicants' counsel. Before the commencement of the oral submissions, I invited counsel to update the court on the

outcome of their engagements. Mr *Mpofu* submitted that the report should not have been filed because the parties failed to reach a settlement. The respondents insisted that the applicants' signage had been removed while the applicants maintained a contrary position. Ms *Ndhlovu* also confirmed the position that the parties had failed to reach settlement, and the parties were prepared to argue the matter.

29. The principles of urgency are a well beaten path in this jurisdiction. The dictum in *Kuvarega v Registrar General & Anor*[1], remains apposite. A matter is urgent if at the time the need to act arises, the matter cannot wait. The enquiry does not end there. In addition to acting immediately when the need arises, the party seeking urgent relief must demonstrate irreparable harm, actual or potential that may arise from the infringement of the party's legitimate rights or interests. In other words, the aggrieved applicant must show that if the court does not grant an immediate remedy, then there would be nothing to redress in the future, or whatever remedy that may exist in the future would not adequately compensate the applicant for the injury suffered.

30. The urgency of the matter was justified in para 30 of the founding affidavit as follows:

> "30. The need to act arose when the Respondents failed to comply with the demand in our letter dated 28 January 2026……., in which they were required to cease all use of the Road House Cinema brand and regularise outstanding reporting and payment obligations by 08h00 on 30 January 2026, failing which legal action would follow. They ignored that deadline. And instead insisted that my legal practitioners engage local counsel to engage with them."

31. Urgency was further motivated in paragraph 15 of the applicant's heads of argument as follows:

> "15. Here, the need to act did not arise merely because earlier correspondence went unanswered. It crystalised when royalties were demanded and not paid, the relationship broke down, and a formal demand to cease operations under the brand was issued and ignored. The harm is continuing and cumulative (dilution of goodwill, deception, and ongoing exploitation without accounting).

32. In paragraph 20 of the founding affidavit, the applicants had also averred that since the conclusion of the franchise agreement, the respondents had repeatedly failed to cooperate with reasonable requests essential to the operation of the Road House Cinema franchise. The applicants went on to outline a litany of incidents where the respondents refused to cooperate with demands that were made during the period spanning October and

[1] 1998 (1) ZLR 188 at p 193

November 2025. The draft agreement which was intended to formalise the arrangement was forwarded to the applicants around 20 November 2026, but it was never signed.

33. The refusal or failure by the applicants to sign the agreement clearly marked the turning point in the parties' relationship. From the applicants' own version of events, the respondents had already failed and/or refused to cooperate with the applicants' requests at the time that the draft agreement was forwarded to the respondents for signing. If the respondents had failed to perform based on an unsigned agreement, then surely it ought to have dawned on the applicants that the respondents' refusal to sign the written agreement was all but a clear act of repudiation of whatever contractual relationship that may have existed between the parties.

34. Central to the applicants' complaint was the continued use of the Road House Cinema brand, the failure to regularise outstanding reporting and payment of royalties. It was further submitted that the applicants were exposed to harm which was continuing and cumulative. The alleged harm was summarised as the dilution of goodwill, deception, and ongoing exploitation without accounting. The respondents refuted the allegations by averring that the facility was rebranded to "Cinema Magic Screen" with effect from 29 January 2026. If the respondents indeed ceased using the applicants trading name, then it followed that the alleged harm arising from the dilution of goodwill, deception and ongoing exploitation had all but petered out.

35. The applicants denied that the respondents had removed the first applicant's branded material at the premises and insisted that the respondents continued to use such material without authority. It was also argued that the mere fact that the respondents acknowledged the need for rebranding was in itself an admission that they were using material that was not theirs. The arguments were persisted with even after the court directed that the parties conduct a ground verification to ascertain if the matter had not been overtaken by events as alleged by the respondents. The failure by the parties to reconcile their respective positions on the situation on the ground created a factual dispute which watered down the urgency of the matter.

36. The court agrees with the submissions by the respondents' counsel that the applicants failed to demonstrate conceivable irreparable harm that would materialise if the matter were not heard on an urgent basis. The nature of the prejudice that would allegedly occur if the matter was not dealt with on an urgent basis is clearly remediable through an ordinary claim for damages or some other relief that is commensurate with the loss that

the applicants can prove to have suffered. The matter is therefore not urgent. Having reached that conclusion, it is not necessary for the court traverse the remaining points in *limine* and the merits of the matter.

COSTS OF SUIT

37. In their opposing affidavit, the respondents prayed for the dismissal of the application with costs on the legal practitioner and own client scale. No further submissions were made in motivation of the prayer for costs at that scale. Be that as it may, costs follow the cause. Costs will be awarded to the respondents as the successful parties on the ordinary scale.

Resultantly it is ordered as follows:

1. The urgent chamber application for an interdict is hereby struck off the roll of urgent matters for not being urgent.
2. The applicants shall bear the respondents' costs of suit jointly and severally, the one paying, the other to be absolved.

MUSITHU J: ……

Gambe Law Group, legal practitioners for the applicant
Dhaka, Lightfoot & Stone Attorneys, legal practitioners for the respondents